

3. MATTER OF WAYNE RANDALL MARTIN AND VANESSA LOPEZ FAMILY TRUST, 26PR0178**Trust Petition**

On June 10, 2026, petitioner Cara Martin (“petitioner”) filed the instant petition seeking an order: (1) compelling production of trust documents and information; (2) determining validity of purported trust amendment; (3) determining beneficiaries and entitlement to trust property; (4) for declaratory relief; (5) for recovery of trust property, sale proceeds and/or traceable assets; (6) for cancellation of instruments; (7) compelling accounting and report of trust assets; (8) for breach of trust and surcharge of trustee; (9) suspending or removing trustee and appointing neutral fiduciary; (10) for double damages; and (11) for attorney fees and costs.

The required notice period for this petition is 30 calendar days. (Prob. Code, §§ 851, subd. (a), 17203, subd. (a).) However, petitioner’s proofs of service, filed July 2 and 8, 2026, respectively, show the petition was not timely served.

Respondent trustee Vanessa Lopez (“respondent”) filed no opposition or response to the petition. On July 23, 2026, respondent filed a notice of motion to transfer venue, which is set for hearing on August 28, 2026.

The court, on its own motion and in the interest of judicial economy, hereby continues the hearing on the instant petition to September 11, 2026. The court directs petitioner to properly serve the petition on all parties entitled to notice. If the court grants respondent’s motion to transfer venue, the court will vacate the September 11, 2026, hearing.

TENTATIVE RULING # 3: THE COURT, ON ITS OWN MOTION AND IN THE INTEREST OF JUDICIAL ECONOMY, HEREBY CONTINUES THE HEARING ON THE PETITION TO 8:30 A.M., FRIDAY, SEPTEMBER 11, 2026, IN DEPARTMENT FOUR. PETITIONER IS DIRECTED TO PROPERLY SERVE THE PETITION ON ALL PARTIES ENTITLED TO NOTICE.